

“taken by surprise, inadvertence, mistake or excusable neglect”. This language is taken from CCP 473(b) which permits the court to provide discretionary relief. Discretionary relief is available not just from defaults, default judgments, and dismissals, but may also be to any order or “other proceeding” taken against the party. (C.C.P. §473(b); *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 254.) The failure of a party to meet a procedural deadline which results in default or dismissal may be the proper subject for relief section 473 (*Lee v. Wells Fargo Bank, N.A.* (2001) 88 Cal.App.4th 1187, 1193) but not when the default or dismissal was the result of a lapse of the statute of limitations, a failure to serve a complaint in a timely manner, failure to prosecute, or failure to amend a complaint (*Pagnini v. Union Bank, N.A.* (2018) 28 Cal.App.5th 298, 303-304).

The court is empowered to relieve a party “upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (C.C.P. §473(b).) Because the law favors judgments on the merits, “doubts must be resolved in favor of relief...” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.) If the party in default moves promptly for relief and no prejudice to the opposing party will result from setting aside the default, only “very slight evidence will be required to justify a court in setting aside the default” (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233 [quoting *Berri v. Rogero* (1914) 168 Cal. 736, 740].)

Defendant showed that the certificate of mailing listed the city for Defendant as La Quinta, not Cathedral City, which is the city she has listed on her moving papers. It should be noted that on all of the court’s mailings to Defendant, La Quinta has been listed as the city, going back to June of 2024. Regardless, Defendant admits in her moving papers she was aware of the May 12<sup>th</sup> court date on May 8<sup>th</sup>. Factoring in the Defendant submitted some paperwork to possibly account for her absence on April 28<sup>th</sup>, the court still considers that her pattern of being unprepared, not fully complying with the court’s Local Rule 3401, or in the last instance, being late and failing to communicate with the court, does not fall under mistake or excusable neglect and therefore does not merit discretionary relief.

Motion to Set Aside Default DENIED.

OSC re default is vacated.

An OSC re default judgment is set for 12.01.26.

## 2.

| CASE #      | CASE NAME                                   | HEARING NAME                   |
|-------------|---------------------------------------------|--------------------------------|
| CVPS2602233 | LARI VS STATE FARM<br>GENERAL INSURANCE CO. | PETITION RE: ARBITRATION AWARD |

**Tentative Ruling:** No tentative ruling, the hearing is continued to August 3<sup>rd</sup>. Court Reporter is approved for that date.